



Justice at Last

DELHI After a decade-long legal battle, all the 12 accused in the Uphaar theatre fire tragedy were finally convicted by a city court on November 20. They include theatre owners Sushil and Gopal Ansal, convicted under Section 304-A (causing death by negligence) and other provisions of the Indian Penal Code pertaining to endangering of human lives. Municipal Corporation of Delhi (MCD) officials Shyam Sunder Sharma and N.D. Tiwari and Delhi Fire Service

Officer H.S. Panwar have also been booked under Section 304-A. Fifty-nine people died of asphyxiation during the screening of the film *Border* in Uphaar cinema in 1997.

The Ansals will face a maximum punishment of two years' imprisonment. Managers Radha Krishna Sharma, Ajit Chaudhary, Nirmal Chopra, gateman Manmohan Uniyal and Delhi Vidyut Board (DVB) officials A.K. Ghera, Bir Singh and Brij Mohan Satija face a maximum punishment of up to 10

TRAGIC: Uphaar theatre on the day of the fire

years in jail under Section 304-B (culpable homicide not amounting to murder). The fire was caused by a DVB transformer.

The lengthy legal battle gained speed after the Delhi High Court ordered conclusion of the hearing by August 2007. Additional Sessions Judge Mamta Sahgal had reserved the verdict on August 21 and it was twice deferred.

But the verdict has disappointed the Association of Victims of Uphaar Tragedy, which has been waging a legal battle against the Ansals. "You give a death sentence for killing one person. How could you give only a two-year term for killing 59 people?" says Neelam Krishnamurthy, who heads the association. She lost her teenaged son and daughter in the tragedy. The guilty's lawyers intend moving the high court against the judgement, while the victims will strive for higher punishment. Justice delayed but not denied. **by Shyam Lal Yadav**

SIGNPOSTS

ISSUED: Standing warrants against Orissa's suspended DGP **B.B. Mohanty** who is evading arrest after allegedly helping his son Biti, convicted for raping a German tourist, escape. The warrants enable the police to arrest him "anytime at any place".



DIED: R.S. Pathak, 82, a former chief justice of India who headed the

panel to probe the controversial UN Oil-for-Food scam, which accused suspended Congress leader Natwar Singh of being involved in it.

CONFERRED: On **Akbar Padamsee**, 79, the Dayawati Modi Award for art, culture and education for 2007 by the Dayawati Modi Foundation.

DIED: Veteran freedom fighter and Congress leader **Jagannath Raghunath Udavanta**, 90. He played an active role in the 1942 Quit India Movement.

VIS-A-VIS SHYAM RAJAK RJD general secretary and national spokesman **versus SHIVANAND TIWARI** JD(U) national spokesman

“**Tiwari's spitting in the holy Ganga betrays scant respect for religious sensibilities of the devout and amounts to profanity.**”



SAURABH SINGH

“**Does a mother get angry when her child urinates in her lap? The Ganga is our mother, how can she get angry with us?**”

EPILOGUE: Ridiculousness of such arguments betrays scant respect for the sensibilities of people.